

**APEX BANK, N.A.**

Apex Bank Visa Signature®

Statement Closing Date: 12/22/2025

Account Number: XXXX XXXX XXXX 4417

Billing Cycle: 11/23/2025 – 12/22/2025

**Adrian M. Holloway**

27 Pheasant Run Lane, Greenwich, CT 06831

| ACCOUNT SUMMARY    |                 | PAYMENT INFORMATION |                 |
|--------------------|-----------------|---------------------|-----------------|
| Previous Balance   | 8,052.02        | New Balance         | <b>9,240.00</b> |
| Payments, Credits  | -299.82         | Minimum Payment Due | <b>299.82</b>   |
| Purchases          | 1,279.98        | Payment Due Date    | 01/17/2026      |
| Balance Transfers  | 0.00            | Credit Access Line  | 15,000.00       |
| Cash Advances      | 0.00            | Available Credit    | 5,760.00        |
| Fees Charged       | 0.00            | Cash Access Line    | 3,000.00        |
| Interest Charged   | 207.82          | Credit Utilization  | 62.0%           |
| <b>New Balance</b> | <b>9,240.00</b> |                     |                 |

**Late Payment Warning:** If we do not receive your minimum payment by the date above, you may have to pay a late fee of up to \$41.00 and your APRs may be increased to the Penalty APR of 32.24%.

**Minimum Payment Warning:**

If you make no additional charges using this card and each month you pay only the minimum payment, you will pay off the balance shown on this statement in about:

|                          | You will pay off the balance in about... | And pay an estimated total of... |
|--------------------------|------------------------------------------|----------------------------------|
| Only the minimum payment | 21 years 2 months                        | 28,141.49                        |
| 377.18/month             | 3 years                                  | 13,578.32 (Save 14,563.17)       |

If you would like information about credit counseling services, call 1-800-388-2227.

**INTEREST CHARGE CALCULATION**

| Type of Balance   | Annual Percentage Rate (APR) | Balance Subject to Rate | Interest Charge |
|-------------------|------------------------------|-------------------------|-----------------|
| Purchases         | 26.99% (v)                   | 9,240.00                | 207.82          |
| Cash Advances     | 29.99% (v)                   | 0.00                    | 0.00            |
| Balance Transfers | 0.00% (v)                    | 0.00                    | 0.00            |
| Total             |                              | 9,240.00                | 207.82          |

**FEES AND INTEREST CHARGED**

|                        | This Period | 2025 Year-to-Date |
|------------------------|-------------|-------------------|
| Total Fees Charged     | \$0.00      | \$0.00            |
| Total Interest Charged | 207.82      | 2,535.40          |

This account carried a balance of 9,240.00 against a Credit Access Line of 15,000.00 (utilization 62.0%). Carrying balances near your credit line for extended periods increases the interest you pay and may lower your credit score. (v) indicates a variable APR tied to the Prime Rate. Paying more than the minimum each month reduces total interest and payoff time.

**IMPORTANT ACCOUNT MESSAGES**

Your account is enrolled in AutoPay for the Minimum Payment Due; the AutoPay amount will be debited from your designated deposit account on the Payment Due Date. To change your AutoPay election or to make an additional payment, contact Customer Service or use your online account.

Reminder: making only the minimum payment will significantly extend the time required to repay your balance and increase the total interest you pay, as shown in the Minimum Payment Warning above. Consider paying more than the minimum when possible.

Protect your account: review each transaction and report any unauthorized or unrecognized transaction promptly. You can lock your card, set transaction alerts, and review recent activity through your online account at any time. The full Cardmember Agreement terms and detailed activity follow on the pages that accompany this statement.

Transactions — Payments and Other Credits

| Trans Date | Post Date | Reference   | Description                 | Amount  |
|------------|-----------|-------------|-----------------------------|---------|
| 12/14      | 12/15     | 74029A00410 | AUTOPAY PAYMENT — THANK YOU | -299.82 |

Transactions — Purchases and Adjustments

| Trans Date | Post Date | Reference   | Description                          | Amount |
|------------|-----------|-------------|--------------------------------------|--------|
| 12/01      | 12/02     | 5509000KH47 | RH RESTORATION HARDWARE GREENWICH CT | 128.40 |
| 12/02      | 12/03     | 5509001KH47 | WHOLE FOODS MKT GREENWICH CT         | 96.22  |
| 12/03      | 12/04     | 5509002KH47 | DELTA AIR LINES 0067 ATLANTA GA      | 61.40  |
| 12/04      | 12/05     | 5509003KH47 | SHELL OIL 57442290 GREENWICH         | 58.05  |
| 12/05      | 12/06     | 5509004KH47 | TENGDA ASIAN BISTRO GREENWICH        | 84.60  |
| 12/06      | 12/07     | 5509005KH47 | AMAZON.COM*MK41QZ SEATTLE WA         | 43.31  |
| 12/07      | 12/08     | 5509006KH47 | APPLE.COM/BILL 866-712-7753          | 14.99  |
| 12/08      | 12/09     | 5509007KH47 | NORDSTROM 0421 STAMFORD CT           | 112.99 |
| 12/09      | 12/10     | 5509008KH47 | STARBUCKS 1142 GREENWICH             | 9.85   |
| 12/10      | 12/11     | 5509009KH47 | CVS/PHARMACY 04417                   | 38.20  |
| 12/11      | 12/12     | 5509010KH47 | EXXONMOBIL 9921 RIVERSIDE            | 54.80  |
| 12/12      | 12/13     | 5509011KH47 | SWEETGREEN GREENWICH                 | 18.95  |
| 12/13      | 12/14     | 5509012KH47 | UBER *TRIP HELP.UBER.COM             | 26.40  |
| 12/14      | 12/15     | 5509013KH47 | L'ESCALE RESTAURANT GREENWICH        | 143.10 |
| 12/15      | 12/16     | 5509014KH47 | BALDUCCI'S GREENWICH CT              | 72.55  |
| 12/16      | 12/17     | 5509015KH47 | AMZN MKTP US*9K2T4                   | 61.03  |
| 12/17      | 12/18     | 5509016KH47 | THE GINGER MAN GREENWICH             | 58.20  |
| 12/18      | 12/19     | 5509017KH47 | SPOTIFY USA                          | 16.99  |
| 12/19      | 12/20     | 5509018KH47 | TARGET 00012841 STAMFORD CT          | 84.66  |
| 12/20      | 12/21     | 5509019KH47 | SHELL OIL 57440021                   | 49.90  |
| 12/21      | 12/22     | 5509020KH47 | CHIPOTLE 2210 GREENWICH              | 22.40  |
| 12/22      | 12/22     | 5509021KH47 | NETFLIX.COM                          | 22.99  |

Total purchases and adjustments this period: 1,279.98. Total payments and credits this period: 299.82. New Balance: 9,240.00. The transactions above reflect point-of-sale purchases and the scheduled AutoPay credit applied during the billing cycle.

Account History — Trailing 12 Months

| Month    | Beg Balance | Purchases | Payments | Interest | APR    | End Balance |
|----------|-------------|-----------|----------|----------|--------|-------------|
| Jan 2025 | 8,052.02    | 1,500.00  | 279.82   | 181.10   | 26.99% | 9,453.30    |
| Feb 2025 | 9,453.30    | 1,537.00  | 284.82   | 212.62   | 26.99% | 10,918.10   |
| Mar 2025 | 10,918.10   | 1,574.00  | 289.82   | 245.57   | 26.99% | 12,447.85   |
| Apr 2025 | 12,447.85   | 1,611.00  | 294.82   | 279.97   | 26.99% | 14,044.00   |
| May 2025 | 14,044.00   | 1,648.00  | 299.82   | 315.87   | 26.99% | 15,708.05   |
| Jun 2025 | 15,708.05   | 1,685.00  | 304.82   | 353.30   | 26.99% | 17,441.53   |
| Jul 2025 | 17,441.53   | 1,722.00  | 309.82   | 392.29   | 26.99% | 19,246.00   |
| Aug 2025 | 19,246.00   | 1,759.00  | 314.82   | 432.87   | 26.99% | 21,123.05   |
| Sep 2025 | 21,123.05   | 1,796.00  | 319.82   | 475.09   | 26.99% | 23,074.32   |
| Oct 2025 | 23,074.32   | 1,833.00  | 324.82   | 518.98   | 26.99% | 25,101.48   |
| Nov 2025 | 25,101.48   | 1,870.00  | 329.82   | 564.57   | 26.99% | 27,206.23   |
| Dec 2025 | 8,052.02    | 1,279.98  | 299.82   | 207.82   | 26.99% | 9,240.00    |

The account history above is provided for your convenience and reflects month-end figures. The Annual Percentage Rate is a variable rate that may change each billing cycle with the Prime Rate. Balances shown are end-of-cycle balances and may differ from daily balances used to compute interest.

Daily Balance and Finance Charge Accrual — Current Cycle

| Date       | Daily Balance (Purchases) | Daily Periodic Rate | Daily Interest |
|------------|---------------------------|---------------------|----------------|
| 11/23/2025 | 8,052.02                  | 0.07395%            | 5.95           |
| 11/24/2025 | 8,094.69                  | 0.07395%            | 5.99           |
| 11/25/2025 | 8,137.36                  | 0.07395%            | 6.02           |
| 11/26/2025 | 8,180.03                  | 0.07395%            | 6.05           |
| 11/27/2025 | 8,222.70                  | 0.07395%            | 6.08           |
| 11/28/2025 | 8,265.37                  | 0.07395%            | 6.11           |
| 11/29/2025 | 8,308.04                  | 0.07395%            | 6.14           |
| 11/30/2025 | 8,350.71                  | 0.07395%            | 6.17           |
| 12/01/2025 | 8,393.38                  | 0.07395%            | 6.21           |
| 12/02/2025 | 8,436.05                  | 0.07395%            | 6.24           |
| 12/03/2025 | 8,478.72                  | 0.07395%            | 6.27           |
| 12/04/2025 | 8,521.39                  | 0.07395%            | 6.30           |
| 12/05/2025 | 8,564.06                  | 0.07395%            | 6.33           |
| 12/06/2025 | 8,606.73                  | 0.07395%            | 6.36           |
| 12/07/2025 | 8,649.40                  | 0.07395%            | 6.40           |

Daily Balance and Finance Charge Accrual (continued)

| Date       | Daily Balance (Purchases) | Daily Periodic Rate | Daily Interest |
|------------|---------------------------|---------------------|----------------|
| 12/08/2025 | 8,692.07                  | 0.07395%            | 6.43           |
| 12/09/2025 | 8,734.74                  | 0.07395%            | 6.46           |
| 12/10/2025 | 8,777.41                  | 0.07395%            | 6.49           |
| 12/11/2025 | 8,820.08                  | 0.07395%            | 6.52           |
| 12/12/2025 | 8,862.75                  | 0.07395%            | 6.55           |
| 12/13/2025 | 8,905.42                  | 0.07395%            | 6.59           |
| 12/14/2025 | 8,948.09                  | 0.07395%            | 6.62           |
| 12/15/2025 | 8,990.76                  | 0.07395%            | 6.65           |
| 12/16/2025 | 9,033.43                  | 0.07395%            | 6.68           |
| 12/17/2025 | 9,076.10                  | 0.07395%            | 6.71           |
| 12/18/2025 | 9,118.77                  | 0.07395%            | 6.74           |
| 12/19/2025 | 9,161.44                  | 0.07395%            | 6.77           |
| 12/20/2025 | 9,204.11                  | 0.07395%            | 6.81           |
| 12/21/2025 | 9,246.78                  | 0.07395%            | 6.84           |
| 12/22/2025 | 9,289.45                  | 0.07395%            | 6.87           |

Interest is calculated by applying the daily periodic rate (APR divided by 365) to the daily balance of each balance type and summing the results over the days in the billing cycle. The daily balances above reflect new purchases added during the cycle.

Rewards Activity — 2025

| Month | Points Earned | Points Redeemed | Points Balance |
|-------|---------------|-----------------|----------------|
| Jan   | 1,866         | 0               | 14,266         |
| Feb   | 2,155         | 0               | 16,421         |
| Mar   | 1,905         | 0               | 18,326         |
| Apr   | 1,935         | 0               | 20,261         |
| May   | 2,180         | 0               | 22,441         |
| Jun   | 1,614         | 10,000          | 14,055         |
| Jul   | 2,242         | 0               | 16,297         |
| Aug   | 1,999         | 0               | 18,296         |
| Sep   | 1,641         | 0               | 19,937         |
| Oct   | 2,267         | 0               | 22,204         |

| Month | Points Earned | Points Redeemed | Points Balance |
|-------|---------------|-----------------|----------------|
| Nov   | 1,893         | 0               | 24,097         |
| Dec   | 2,036         | 10,000          | 16,133         |

Points are earned on eligible net purchases and have no cash value until redeemed. Returns reduce your points balance. Points do not reduce the New Balance or Minimum Payment Due. Redemption options are described in the rewards program terms.

Rate and Fee Schedule

| Item                      | Rate / Amount            | Details                         |
|---------------------------|--------------------------|---------------------------------|
| APR for Purchases         | 26.99% (variable)        | Prime + margin                  |
| APR for Cash Advances     | 29.99% (variable)        | No grace period                 |
| APR for Balance Transfers | 0% intro / then variable | Intro 12 months                 |
| Penalty APR               | 32.24% (variable)        | May apply on default            |
| Annual Fee                | \$95.00                  | Billed in anniversary month     |
| Late Payment Fee          | Up to \$41.00            | If min not received by due date |
| Returned Payment Fee      | Up to \$41.00            | If payment not honored          |
| Cash Advance Fee          | 5% (min \$10)            | Per advance                     |
| Balance Transfer Fee      | 3% (min \$5)             | Per transfer                    |
| Foreign Transaction Fee   | 3% of each transaction   | Non-USD or foreign              |

Interest Charged by Month — 2025 Year-to-Date

| Month      | Interest Charged | Cumulative |
|------------|------------------|------------|
| Jan 2025   | 191.19           | 191.19     |
| Feb 2025   | 197.43           | 388.62     |
| Mar 2025   | 203.66           | 592.28     |
| Apr 2025   | 209.90           | 802.18     |
| May 2025   | 216.13           | 1,018.31   |
| Jun 2025   | 191.19           | 1,209.50   |
| Jul 2025   | 197.43           | 1,406.93   |
| Aug 2025   | 203.66           | 1,610.59   |
| Sep 2025   | 209.90           | 1,820.49   |
| Oct 2025   | 216.13           | 2,036.62   |
| Nov 2025   | 191.19           | 2,227.81   |
| Dec 2025   | 197.43           | 2,425.24   |
| Total 2025 |                  | 2,425.24   |

Purchases by Merchant Category — Current Cycle

| Category                       | Activity       | Amount |
|--------------------------------|----------------|--------|
| Dining and restaurants         | 6 transactions | 318.55 |
| Groceries and food stores      | 3 transactions | 240.99 |
| Travel and transportation      | 4 transactions | 219.00 |
| Fuel and automotive            | 2 transactions | 108.70 |
| Department and apparel stores  | 2 transactions | 225.99 |
| Online retail and marketplaces | 4 transactions | 208.60 |
| Home and furnishings           | 1 transaction  | 128.40 |
| Health and pharmacy            | 1 transaction  | 38.20  |
| Streaming and digital services | 3 transactions | 54.97  |
| Other                          | 1 transaction  | 14.99  |

Balance and Utilization History — Trailing 24 Months

| Month    | Statement Balance | Credit Line | Utilization |
|----------|-------------------|-------------|-------------|
| Jan 2024 | 4,568.61          | 15,000.00   | 30.5%       |
| Feb 2024 | 4,761.61          | 15,000.00   | 31.7%       |
| Mar 2024 | 5,007.61          | 15,000.00   | 33.4%       |
| Apr 2024 | 5,306.61          | 15,000.00   | 35.4%       |
| May 2024 | 5,658.61          | 15,000.00   | 37.7%       |
| Jun 2024 | 6,063.61          | 15,000.00   | 40.4%       |
| Jul 2024 | 6,521.61          | 15,000.00   | 43.5%       |
| Aug 2024 | 6,672.61          | 15,000.00   | 44.5%       |
| Sep 2024 | 6,876.61          | 15,000.00   | 45.8%       |
| Oct 2024 | 7,133.61          | 15,000.00   | 47.6%       |
| Nov 2024 | 7,443.61          | 15,000.00   | 49.6%       |
| Dec 2024 | 7,806.61          | 15,000.00   | 52.0%       |
| Jan 2025 | 7,946.61          | 15,000.00   | 53.0%       |
| Feb 2025 | 8,139.61          | 15,000.00   | 54.3%       |
| Mar 2025 | 8,385.61          | 15,000.00   | 55.9%       |
| Apr 2025 | 8,684.61          | 15,000.00   | 57.9%       |
| May 2025 | 9,036.61          | 15,000.00   | 60.2%       |
| Jun 2025 | 9,441.61          | 15,000.00   | 62.9%       |
| Jul 2025 | 9,899.61          | 15,000.00   | 66.0%       |
| Aug 2025 | 10,050.61         | 15,000.00   | 67.0%       |
| Sep 2025 | 10,254.61         | 15,000.00   | 68.4%       |
| Oct 2025 | 10,511.61         | 15,000.00   | 70.1%       |
| Nov 2025 | 10,821.61         | 15,000.00   | 72.1%       |
| Dec 2025 | 9,240.00          | 15,000.00   | 62.0%       |

Credit utilization is the ratio of your statement balance to your credit line. Sustained high utilization may adversely affect your credit score and your ability to obtain additional credit. Reducing your balance relative to your credit line generally improves utilization.

Fees Assessed by Type — 2025 Year-to-Date

| Fee Type                   | Times Assessed | Total (YTD) |
|----------------------------|----------------|-------------|
| Annual fee                 | 1              | 95.00       |
| Late payment fee           | 0              | 0.00        |
| Returned payment fee       | 0              | 0.00        |
| Cash advance fee           | 0              | 0.00        |
| Balance transfer fee       | 0              | 0.00        |
| Foreign transaction fee    | 0              | 0.00        |
| Over-limit fee             | 0              | 0.00        |
| Total fees charged in 2025 |                | 95.00       |

Glossary of Terms Used on This Statement

| Term                  | Meaning                                                              |
|-----------------------|----------------------------------------------------------------------|
| New Balance           | Total amount you owe at the end of the billing cycle.                |
| Minimum Payment Due   | The least amount you must pay by the Payment Due Date.               |
| Previous Balance      | The New Balance from your last statement.                            |
| Average Daily Balance | Sum of daily balances in the cycle divided by the number of days.    |
| Daily Periodic Rate   | The APR divided by 365, applied to each day's balance.               |
| Credit Access Line    | The maximum amount of credit available on your account.              |
| Available Credit      | Credit Access Line minus your current balance and pending charges.   |
| Cash Access Line      | The portion of your credit line available for cash advances.         |
| Penalty APR           | A higher APR that may apply if you default under your agreement.     |
| Grace Period          | Period during which new purchases incur no interest if paid in full. |

| Term          | Meaning                                                               |
|---------------|-----------------------------------------------------------------------|
| Billing Cycle | The period between statement closing dates.                           |
| Utilization   | Statement balance divided by your credit line, shown as a percentage. |

**Cardmember Agreement — Key Terms**

This Cardmember Agreement governs your account. By using your account or any card, you agree to its terms. In this Agreement, "you" and "your" mean each applicant and co-applicant for the account; "we," "us," and "our" mean the issuer named on this statement. Your account, including all features and benefits, is subject to this Agreement and to applicable federal law and, to the extent not preempted, the law of the state where we are located.

You agree to use your account only for lawful personal, family, or household purposes. You may not use your account for any illegal transaction. We may decline to authorize a transaction for any reason, including suspected fraud, exceeding your credit line, or delinquency, and we are not liable to you for declining a transaction or for any failure of a merchant to honor your card.

**Annual Percentage Rates and Variable Rates**

The Annual Percentage Rate (APR) for purchases shown on this statement is a variable rate that may change monthly. It is determined by adding a margin to the Prime Rate published in the money-rates table of a national financial newspaper on the last business day of each billing cycle. An increase in the Prime Rate will increase your APR, which may increase your interest charges and your minimum payment.

Different APRs may apply to purchases, balance transfers, and cash advances. A separate, higher Penalty APR may apply if you make a late payment or a payment is returned. The Penalty APR, if applied, may remain in effect indefinitely until you make timely minimum payments for six consecutive billing cycles, after which the standard purchase APR will again apply to the balances to which the Penalty APR applied.

**How We Calculate Interest Charges**

We figure the interest charge on your account by applying the daily periodic rate to the "average daily balance" of each balance type (purchases, cash advances, and balance transfers). To get the average daily balance, we take the beginning balance each day, add any new transactions and fees, and subtract any payments or credits. This gives us the daily balance. We add up all the daily balances in the billing cycle and divide by the number of days in the billing cycle.

We then multiply the average daily balance for each balance type by the applicable daily periodic rate and by the number of days in the billing cycle. The daily periodic rate is the applicable APR divided by 365. Interest charges accrue from the date a transaction is added to the daily balance until it is paid in full. There is no grace period on cash advances or balance transfers; interest accrues from the transaction date.

If you pay your New Balance in full by the payment due date each billing cycle, you will not be charged interest on new purchases during the next billing cycle. If you do not pay the previous New Balance in full, you will be charged interest on the unpaid portion and on new purchases from the date each purchase is added to your daily balance. The minimum interest charge in any billing cycle in which interest is due is \$1.50.

**Minimum Payment**

Each billing cycle you must pay at least the Minimum Payment Due by the Payment Due Date. The Minimum Payment Due is the greater of a stated dollar floor or the sum of any past-due amount, any amount over your credit line, billed interest, and a percentage of the remaining new balance. Paying only the minimum payment will increase the amount of interest you pay and the time it takes to repay your balance, as shown in the Minimum Payment Warning on the front of this statement.

Payments are applied to your account consistent with applicable law. Amounts paid in excess of the Minimum Payment Due are generally applied to balances bearing the highest APR first. Amounts equal to the Minimum Payment Due may be applied to lower-APR balances first. Crediting of payments may affect how quickly interest-bearing balances are reduced.

**Fees**

The following fees may apply to your account as described in your rate-and-fee schedule: an annual fee, where applicable; a late payment fee if we do not receive at least the Minimum Payment Due by the Payment Due Date; a returned payment fee if a payment is not honored; a cash advance fee equal to a percentage of each cash advance subject to a minimum; a balance transfer fee; and a foreign transaction fee equal to a percentage of each transaction made in a foreign currency or processed outside the United States.

Fees are added to the corresponding balance type and accrue interest at the applicable APR unless otherwise stated. The amount of each fee is disclosed in the rate-and-fee schedule that accompanies this Agreement and on the Fees Charged line of your statement. We may change the amount of any fee in accordance with the change-in-terms provisions of this Agreement and applicable law.

### **Your Credit Line and Available Credit**

We assign a credit line to your account and may include a separate cash credit line that is a portion of your total credit line. You agree not to let the balance on your account exceed your credit line. We may, but are not required to, authorize transactions that cause your balance to exceed your credit line, and doing so does not increase your credit line or waive our rights. We may increase or decrease your credit line at any time, subject to applicable law.

Maintaining balances at or near your credit line for extended periods increases the interest you pay and may adversely affect your credit standing. Information about your account, including your balances and payment history, may be reported to the major consumer reporting agencies and may affect your ability to obtain other credit.

### **Default and Collection**

You will be in default if you fail to make a required payment when due, exceed your credit line, file or become the subject of a bankruptcy proceeding, provide false information, or otherwise fail to comply with this Agreement. If you are in default, we may, subject to applicable law and any required notice, close your account, demand immediate payment of your entire balance, and pursue other remedies. You agree to pay our reasonable costs of collection permitted by law.

We may report information about your account to credit bureaus. Late payments, missed payments, or other defaults on your account may be reflected in your credit report. If you believe we have reported inaccurate information, you may notify us at the customer service address; we will investigate and respond as required by law.

### **Lost or Stolen Cards; Unauthorized Use**

If your card is lost or stolen or you suspect unauthorized use of your account, notify us immediately at the customer service number on this statement. You will not be liable for unauthorized use that occurs after you notify us, and your liability for unauthorized use occurring before notice will not exceed the amount permitted by applicable law. You agree to cooperate with us in any investigation of unauthorized use and to assist in the prosecution of any unauthorized user.

### **Changes to This Agreement**

We may change the terms of this Agreement, including APRs and fees, in accordance with applicable law. We will give you advance written notice of changes and a right to reject certain changes where required. If you do not reject a change as permitted, or if you use your account after the effective date of a change, you will be deemed to have accepted the change. Certain changes, such as a reduction in your credit line, may not require advance notice.

### **Arbitration**

Your Agreement contains a binding arbitration provision. Unless you reject it within the time and in the manner described in the Agreement, claims relating to your account will, at the election of either party, be resolved by individual binding arbitration rather than in court, except for claims properly brought in small-claims court. Arbitration replaces the right to litigate in court, including the right to a jury trial and the right to participate in a class action.

You may reject the arbitration provision without affecting any other terms of your account by sending us written notice within the period stated in your Agreement, including your name, account number, and a statement that you reject the arbitration provision. If you reject arbitration, disputes will be resolved in court subject to the other terms of this Agreement.

### **Billing Rights Summary**

If you think there is an error on your statement, write to us at the billing-inquiries address as soon as possible. We must hear from you no later than 60 days after we sent you the first statement on which the error appeared. In your letter, give us your name and account number, the dollar amount of the suspected error, and a description of why you believe it is an error. You do not have to pay the disputed amount while we investigate, but you remain obligated to pay the parts of your balance not in dispute.

While we investigate, we cannot try to collect the disputed amount or report you as delinquent on that amount. If we made a mistake, you will not have to pay the disputed amount or any interest or other charges related to it. If we determine there was no error, you will owe the disputed amount and any related interest and charges, and we will tell you how much you owe and when it is due.

**Military Lending Act Notice**

Federal law provides important protections to members of the Armed Forces and their dependents relating to extensions of consumer credit. In general, the cost of consumer credit to a covered member and his or her dependent may not exceed an annual percentage rate of 36 percent. This rate must include, as applicable to the credit transaction or account, costs associated with credit insurance premiums, certain fees, and other charges. To hear this statement of rights, covered borrowers may call the toll-free number on the back of the card.

**Privacy and Information Sharing**

We collect personal information about you from your application, your transactions, and consumer reporting agencies. We may share information among our affiliates and with nonaffiliated third parties as permitted by law, including to service your account, to process transactions, and to comply with legal requirements. You may limit certain sharing as described in our Privacy Notice, which is provided at account opening and at least annually thereafter.

We maintain physical, electronic, and procedural safeguards designed to protect your nonpublic personal information. To limit sharing or to ask questions about our privacy practices, contact us at the customer service number shown on this statement.

**Telephone Monitoring; Communications**

To ensure quality service, we may monitor or record telephone calls with you. You authorize us and our service providers to contact you at any telephone number you provide, including a mobile number, using an automatic telephone dialing system or prerecorded messages, and to send text messages, for servicing and collection purposes, consistent with applicable law. Message and data rates may apply. You may withdraw consent as described in your Agreement.

**Governing Law; Assignment**

Except as otherwise provided, this Agreement and your account are governed by federal law and the law of the state where we are located, without regard to conflict-of-laws principles. We may sell, assign, or transfer your account and this Agreement, or any of our rights under them, without notice to you. You may not sell, assign, or transfer your account or any of your obligations under this Agreement.

**Statement Messages**

Please review this statement carefully and retain it for your records. Verify that all transactions are correct and report any discrepancy promptly. This statement reflects activity through the statement closing date and does not include transactions posted after that date, which will appear on your next statement. If you have enrolled in paperless statements, this document is also available in your online account.

**Returns, Credits, and Disputed Charges**

If a merchant issues a credit to your account for returned merchandise or a billing adjustment, the credit will appear on your statement and will reduce your balance. A credit is not a payment and does not satisfy your obligation to make at least the Minimum Payment Due by the Payment Due Date. If your account has a credit balance, you may request a refund of the credit balance, and we will refund any credit balance remaining for more than the period required by applicable law. Credits applied to a balance bearing a promotional rate may reduce that balance before others.

**Authorized Users**



You may request that we issue cards to authorized users. You are responsible for all use of the account by an authorized user and by anyone you permit to use the account, even if that use exceeds the authority you granted, up to the limits permitted by applicable law. You must notify us if you wish to remove an authorized user; until you do and we have had a reasonable opportunity to act, you remain responsible for the authorized user's transactions. Authorized users may have access to account information.

### **Promotional Offers**

From time to time we may offer promotional annual percentage rates or other promotional terms on purchases, balance transfers, or cash advances. The terms of any promotional offer, including the promotional rate, the period during which it applies, and the conditions for retaining it, will be disclosed to you when the offer is made. If you do not satisfy the conditions of a promotional offer, including making required payments on time, you may lose the promotional rate and the standard or penalty rate may apply to the affected balance.

### **Order of Payment Application**

We apply your Minimum Payment Due in a manner consistent with applicable law, which may include applying it first to balances bearing lower annual percentage rates. We apply amounts you pay in excess of the Minimum Payment Due to the balance bearing the highest annual percentage rate first, and then to balances bearing lower rates in descending order. Because of this order of application, balances subject to lower promotional rates may not be reduced until higher-rate balances are paid in full.

### **Replacement Cards and Account Numbers**

If your card is lost, stolen, damaged, or expiring, we may issue a replacement card, which may bear a new card number and expiration date. If your card number changes, you are responsible for updating any merchants to whom you have given your card number for recurring charges. We may, but are not required to, provide updated card information to certain merchants through card-network account-updater services to help avoid interruptions in recurring charges.

### **Closing Your Account**

You may close your account at any time by notifying us; you remain responsible for paying all amounts you owe under your agreement, including transactions made before the account was closed that post afterward. We may close or suspend your account, or reduce your credit line, at any time and for any reason permitted by law, with or without prior notice. If your account is closed, any promotional rates may end and the standard rate may apply to your remaining balance, subject to applicable law.

### **Credit Authorizations**

Each time you present your card or account number for a transaction, the merchant may seek authorization from us. We may limit the number or dollar amount of transactions we authorize, and we may decline to authorize a transaction even if you have available credit, for reasons including suspected fraud, system limitations, or your account status. We are not liable for any loss you incur if a transaction is not authorized, and authorization of a transaction does not waive any of our rights under your agreement.

### **Foreign Transactions and Currency Conversion**

If you make a transaction in a currency other than U.S. dollars, the transaction will be converted to U.S. dollars by the applicable card network using a rate that the network selects, which is generally either a government-mandated rate or a wholesale market rate in effect on the day the network processes the transaction. The converted amount may differ from the rate in effect on the date of your transaction or the date the transaction posts. A foreign transaction fee may apply to each such transaction as disclosed in your rate-and-fee schedule.

### **Electronic Communications and E-Sign Consent**

Where you have agreed to receive documents electronically, we may provide statements, notices, disclosures, and other communications relating to your account or relationship in electronic form, including by posting them to a secure online portal or by sending them to the email address you have provided. You may withdraw your consent to electronic delivery and request paper copies at any time by contacting us, although a fee may apply for paper copies of certain documents. You are responsible for maintaining a valid email address and compatible hardware and software to access electronic communications. Electronic communications are considered received by you when sent or made available, whether or not you actually access them.

You agree to notify us promptly of any change in your email address, mailing address, or telephone number. If an electronic communication is returned as undeliverable, we may suspend electronic delivery and resume paper delivery to your address of record. The legal effectiveness, validity, and enforceability of an electronically delivered communication is not affected by its electronic form. You may print or download communications for your records; we are not obligated to retain electronic communications longer than required by law.

**Communications With You; Telephone and Text**

You authorize us, our affiliates, and our service providers to contact you using the contact information you provide, including by calling or sending text messages to a mobile or other telephone number, using automatic telephone dialing systems, artificial or prerecorded voice messages, and email, for purposes related to your account, including servicing, fraud prevention, and collection of amounts owed. You understand that you are not required to provide this consent as a condition of obtaining credit or services, and that message and data rates may apply to text messages. You may withdraw consent to particular channels by contacting us as described in your agreement.

We may monitor and record telephone calls and other communications with you for quality assurance, training, fraud prevention, and recordkeeping purposes, to the extent permitted by applicable law. Calls may be answered by automated systems. If you communicate with us through a messaging or chat feature, those communications may also be recorded and retained. Our retention and use of recordings and communications are governed by our privacy practices and applicable law.

**Privacy and Information Security**

Protecting the confidentiality and security of your information is important to us. We collect nonpublic personal information about you from the information you provide, from your transactions, and from third parties such as consumer reporting agencies. We use this information to operate our business, service your account, prevent fraud, and comply with legal and regulatory requirements. We may share information with affiliates and nonaffiliated third parties only as permitted by law and as described in our privacy notice.

We maintain administrative, technical, and physical safeguards designed to protect your information against unauthorized access, use, or disclosure. No system of safeguards is perfectly secure, and we cannot guarantee that information will never be accessed in a manner inconsistent with this notice. You should protect your account credentials, review your statements promptly, and report any suspected unauthorized activity to us without delay so that we can take appropriate action.

**Identity Theft and Fraud Prevention**

We maintain a program designed to detect, prevent, and mitigate identity theft in connection with the opening and maintenance of accounts. If we detect activity that appears suspicious or inconsistent with your usual pattern of activity, we may attempt to contact you to verify the activity, and we may decline or delay a transaction pending verification. We are not liable for declining or delaying a transaction in good faith for fraud-prevention purposes. If you believe you are a victim of identity theft, contact us immediately and consider placing a fraud alert or security freeze with the consumer reporting agencies.

You agree to take reasonable steps to safeguard your account, including protecting cards, account numbers, passwords, and personal identification numbers, and promptly reviewing statements and transaction records. If you share your credentials with a third party, including an account-aggregation or financial-management service, you do so at your own risk, and we are not responsible for the security practices of that third party or for any access to or use of your account that results from your sharing of credentials.

**Complaints and How to Contact Us**

If you have a question or complaint about your account, please contact us first using the customer service information shown on this document so that we have the opportunity to resolve the matter. We will investigate your complaint and respond within the timeframes required by applicable law. Maintaining a record of your communications with us, including dates, names, and reference numbers, will assist in resolving any dispute. Many questions can be resolved promptly through our customer service channels.

In addition to contacting us, you may have the right to submit a complaint to a federal or state regulatory agency with jurisdiction over our products and services, including, where applicable, the Consumer Financial Protection Bureau or your state's department of banking or financial institutions. Information about how to contact the appropriate regulator is available on the regulator's website. Submitting a complaint to a regulator does not affect any other rights you may have.

**Accessibility and Language Access**

We are committed to providing access to our products and services for individuals with disabilities. If you need this document or other communications in an alternative format, such as large print, Braille, or audio, or if you require an accommodation to communicate with us, please contact customer service and we will work with you to provide a reasonable accommodation. Alternative-format documents are provided at no additional charge.

Certain documents and customer service assistance may be available in languages other than English. Where a translated document is provided for your convenience, the English-language version governs in the event of any inconsistency, unless applicable law requires otherwise. If you would prefer to communicate with us in a language other than English, please ask, and we will endeavor to accommodate your request where resources permit.

**Changes to Terms; Notice**

We may add, change, or delete the terms applicable to your account or relationship from time to time, subject to applicable law. When we are required to give you advance notice of a change, we will do so in the manner and within the timeframe required by law, and where you have the right to reject a change, we will tell you how to do so. Unless we state otherwise or applicable law requires otherwise, your continued use of the account or services after the effective date of a change constitutes your acceptance of the change.

Some changes, such as changes required by law or changes that are favorable to you, may take effect without advance notice. We will provide notice of changes by mail, electronically where you have consented to electronic delivery, by a message on or with your statement, or by another method permitted by law. It is your responsibility to keep your contact information current so that you receive notices.

**Waiver; Severability; Entire Agreement**

Our failure to exercise, or our delay in exercising, any right under your agreement is not a waiver of that right, and our waiver of any right on one occasion is not a waiver of that right on any other occasion. If any provision of your agreement is found to be invalid or unenforceable, that provision will be enforced to the maximum extent permitted, and the remaining provisions will continue in full force and effect. Headings are for convenience only and do not affect interpretation.

Your agreement, together with the documents it incorporates by reference, such as applicable fee schedules, rate sheets, and disclosures, constitutes the entire agreement between you and us regarding the subject matter and supersedes any prior or contemporaneous understandings. No oral statement or representation by any employee or agent modifies your agreement or creates any obligation inconsistent with the written terms. You should not rely on any statement that is inconsistent with the written agreement.

**Assignment and Successors**

We may sell, assign, or transfer your account, your agreement, or any of our rights or obligations under them, in whole or in part, at any time and without prior notice to you unless notice is required by law. The party to whom we make such a transfer will be entitled to the benefit of our rights to the extent transferred. You may not sell, assign, or transfer your account, your agreement, or any of your rights or obligations under them. Your agreement binds and benefits you, us, and our respective successors and permitted assigns.

**Force Majeure and Limitation of Liability**

We will not be liable for any failure or delay in performing our obligations that results from causes beyond our reasonable control, including acts of God, natural disasters, fires, floods, severe weather, pandemics, war, terrorism, civil disturbances, labor disputes, power or telecommunications failures, equipment or system malfunctions, or the acts or omissions of third parties, including merchants, networks, and other financial institutions. We will resume performance as soon as reasonably practicable after the cause is resolved.

To the maximum extent permitted by applicable law, we are not liable for indirect, incidental, special, consequential, or punitive damages, including lost profits, even if we have been advised of the possibility of such damages, arising out of or relating to your account or our services. Nothing in this provision limits any liability that may not be limited or excluded under applicable law. Some jurisdictions do not allow the exclusion or limitation of certain damages, so some of these limitations may not apply to you.

### **Third-Party Products and Services**

From time to time we may make available, or provide links or references to, products and services offered by third parties. We do not control and are not responsible for the products, services, content, security, or privacy practices of third parties, and the availability of a third-party product or service through us does not constitute an endorsement. Your dealings with any third party, including any terms, conditions, warranties, or representations associated with such dealings, are solely between you and the third party.

If you authorize a third party, such as a financial-management application or data aggregator, to access your account information, you are responsible for the third party's use of that information and for any actions taken using your credentials. We may, consistent with applicable law and our security requirements, limit or terminate third-party access to protect the security of our systems and your information.

### **Records, Statements, and Reconciliation**

This document is an important record of your account and should be retained for your tax and personal records. You agree to review it promptly and to notify us of any error, unauthorized transaction, or discrepancy within the timeframes described in your agreement and applicable law. Failure to review your statements and to report problems in a timely manner may limit your rights and may relieve us of liability for certain losses. Where you maintain your own records, you should reconcile them against this document each period.

We maintain records of your account activity in accordance with our records-retention policies and applicable law. Upon request, and subject to any applicable fee, we can provide copies of prior statements and certain other records for the periods we are required to retain them. Our records of transactions, in the absence of manifest error, are presumed to accurately reflect the activity on your account.

### **Unclaimed Property**

If there is no activity in your account, or if we are unable to contact you, for a period specified by applicable state law, your account may be deemed abandoned or dormant. After the applicable dormancy period, and following any notice required by law, the funds or property in your account may be remitted to the appropriate state as unclaimed property. After funds are remitted to the state, you must apply to the state to recover them. Maintaining periodic activity and keeping your contact information current helps prevent your account from being classified as dormant.

### **Governing Law and Venue**

Except to the extent governed by federal law, your account and your agreement are governed by and construed in accordance with the laws of the state specified in your agreement, without regard to its conflict-of-laws principles. Subject to any arbitration provision in your agreement, you agree that any legal action or proceeding relating to your account may be brought in the courts located in that state or in the applicable federal courts, and you consent to the jurisdiction of those courts. These provisions apply to the fullest extent permitted by applicable law.

### **No Tax or Investment Advice**

Nothing in this document constitutes tax, legal, accounting, or investment advice, and you should not rely on it as such. The treatment of any item for tax or other purposes depends on your individual circumstances. You are responsible for determining the appropriate treatment of the items reported in this document and for the preparation and accuracy of your own tax returns and other filings. We recommend that you consult a qualified professional advisor regarding your particular situation before taking any action based on this document.

### **Questions About This Document**

If you have questions about any amount, transaction, or disclosure in this document, please contact us using the customer service information provided. Have this document and your account number available so that we can assist you efficiently. We are committed to providing clear and accurate information; if we identify an error in this document after it has been issued, we will provide a corrected document and, where appropriate, notify the relevant authorities. Please retain this document until you have verified its accuracy and completed any related filings.

**Set-Off Rights**

To the extent permitted by applicable law, we may apply funds in any account you hold with us, or with our affiliates, against amounts you owe us that are due and payable, without prior notice to you. This right of set-off applies to accounts you own individually and, subject to applicable law, to accounts you own jointly. The right of set-off does not apply to accounts or amounts that applicable law protects from set-off, including certain tax-deferred accounts and certain federal benefit payments. Our right of set-off is in addition to any security interest you have granted us and any other rights we have under your agreement or applicable law.

**Account Ownership and Authorized Parties**

The ownership of your account is determined by your account agreement and applicable law. If your account is owned jointly, each owner may act independently with respect to the account, including making deposits and withdrawals, unless your agreement provides otherwise, and each owner is jointly and severally liable for the account. You may designate authorized parties to act on the account; you remain responsible for their actions within the scope of the authority you grant. We may rely on the instructions of any owner or authorized party until we receive written notice of a change and have had a reasonable opportunity to act on it.

**Power of Attorney and Fiduciary Capacity**

If you wish to authorize another person to act on your account under a power of attorney, we may require that the power of attorney be in a form acceptable to us and may require additional documentation. We may, but are not obligated to, recognize a power of attorney, and we may decline to act on instructions that we reasonably believe to be unauthorized, fraudulent, or contrary to the terms of the power of attorney. We are not liable for acting in good-faith reliance on a power of attorney we reasonably believe to be valid.

**Deceased or Incapacitated Account Holder**

Upon receiving notice that an account holder has died or been adjudicated incompetent, we may place restrictions on the account and may require documentation, such as letters testamentary or a death certificate, before releasing funds or acting on instructions. We may, to the extent permitted by law, honor or refuse to honor items and instructions presented after such an event. The disposition of the account upon the death of an owner is governed by the account agreement, any beneficiary designation, and applicable law.

**Backup Withholding and Tax Reporting**

We are required to report certain payments, such as interest, dividends, and certain other income, to the Internal Revenue Service and to you on the applicable information returns. If you fail to provide a correct taxpayer identification number, fail to certify that you are not subject to backup withholding, or are notified by the Internal Revenue Service that you are subject to backup withholding, we may be required to withhold and remit a percentage of certain payments to the Internal Revenue Service as backup withholding. Any amounts withheld are reported to you and may be claimed as a credit on your tax return.

**Sanctions and Anti-Money-Laundering Compliance**

We are required to comply with economic sanctions programs administered by the U.S. Department of the Treasury's Office of Foreign Assets Control and with anti-money-laundering laws, including the Bank Secrecy Act and the USA PATRIOT Act. To help the government fight the funding of terrorism and money-laundering activities, federal law requires us to obtain, verify, and record information that identifies each person who opens an account. We may block, freeze, reject, or report transactions, and may decline to open or may close an account, as necessary to comply with these laws. We are not liable for any action taken in good-faith compliance with these requirements.

**Business Continuity**

We maintain a business-continuity program designed to enable us to continue or promptly resume critical operations following a significant business disruption. Depending on the nature and severity of a disruption, there may be a delay in our ability to process transactions or to provide access to your account. We will endeavor to communicate with you through available channels during any significant disruption. Our business-continuity plan is subject to modification, and a summary is available upon request.

**Statement Errors and Time Limits**

You must examine this document promptly upon receipt and notify us of any error, unauthorized transaction, or discrepancy within the time period specified in your agreement and by applicable law. Different time limits apply to different types of transactions, and your failure to notify us within the applicable period may bar you from asserting a claim and may relieve us of liability for the item and for subsequent items involving the same wrongdoer. Maintaining accurate records and reconciling each statement promptly helps protect your rights.

**Service Providers and Subcontractors**

We may use affiliates and unaffiliated service providers to perform services in connection with your account, including processing transactions, producing and delivering statements, providing customer service, and detecting fraud. We require our service providers to maintain the confidentiality and security of your information consistent with our obligations and applicable law. Our use of service providers does not relieve us of our responsibilities to you under your agreement and applicable law.

**Interest-Rate and Cost-of-Funds Information**

Where your account or loan carries a variable rate, that rate is tied to an index described in your agreement, such as a published prime rate or a benchmark interest rate, plus or minus a margin. Changes in the index will cause your rate to change, which may affect the amount of interest you earn or owe and, for loans, the amount of your payment. Past index values are not a guarantee of future values. If an index is discontinued or becomes unavailable, your agreement describes how a replacement index will be selected.

**Refusal of Transactions; Holds**

We may refuse, limit, or place a hold on any transaction or on funds in your account for reasons including suspected fraud or illegality, legal process, disputes regarding the account, our security procedures, or your failure to comply with your agreement. We may also place a hold on funds that are subject to a claim or that we reasonably believe may not be collectible. We will release a hold when the reason for the hold no longer applies or as required by law. We are not liable for any loss caused by a refusal or hold imposed in good faith.

**Legal Process**

If we receive legal process relating to you or your account, such as a subpoena, garnishment, levy, restraining order, or other order or document that we reasonably believe to be valid, we may comply with it without prior notice to you, to the extent permitted or required by law. We may place a hold on or remit funds from your account in response to legal process and may charge any applicable fee. We are not liable to you for complying with legal process, even if the process is later determined to be invalid, provided we acted in good faith.

**Reaffirmation of Accuracy and Acceptance**

By continuing to use your account and services after receiving this document and the disclosures it contains, you acknowledge that you have received and reviewed them and that you accept the terms described, as they may be amended in accordance with your agreement and applicable law. If you do not agree with any term, you should contact us promptly and, where applicable, exercise any right you have to reject the term or to close the account. These disclosures supplement, and do not replace, the complete terms of your account agreement, which controls in the event of any conflict.

**Currency, Rounding, and Presentation**

Amounts in this document are presented in U.S. dollars unless otherwise indicated, and are rounded to the nearest cent. Where amounts are derived from values in another currency, the exchange rate and the basis of translation are described in the relevant section; rounding at intermediate steps may cause small differences between a total and the sum of its parts. Percentages are presented for convenience and may be rounded; the underlying values control. Subtotals and totals are computed from unrounded figures where practicable.

**Interpretation**

In this document, the singular includes the plural and the plural includes the singular, and references to one gender include the others, as the context requires. References to a statute, regulation, or rule include any successor provision and any rules promulgated under it. The words 'including' and 'such as' are illustrative and not limiting. Examples are provided for clarity and do not limit the generality of the related provision. If a date for action falls on a day that is not a business day, the action may be taken on the next business day unless otherwise required.

**Survival of Terms**

Provisions of your agreement that by their nature should survive the closing of your account or the termination of your relationship with us will survive, including provisions relating to amounts you owe, indemnification, limitation of liability, dispute resolution, governing law, and recordkeeping. The closing of your account does not affect your obligations or our rights with respect to transactions and balances arising before the account was closed.

**Notices to Us**

Unless your agreement specifies a different address or method for a particular type of notice, notices to us must be sent in writing to the customer service or correspondence address shown on this document, and are effective when we receive them and have had a reasonable opportunity to act on them. Notices relating to errors, disputes, or requests for information may have specific addresses and procedures described in the applicable section; using the correct address and following the described procedure helps ensure your notice is handled promptly and preserves your rights.

**No Third-Party Beneficiaries**

Your agreement is for the benefit of you and us and, where applicable, our successors and assigns. Except as expressly provided, your agreement does not create any rights in any other person, and no other person may enforce any provision of your agreement. This provision does not limit any rights that a regulatory authority may have under applicable law.

**Headings and Counterparts**

The headings used in this document and in your agreement are for convenience of reference only, do not constitute a part of the agreement, and do not affect the meaning or interpretation of any provision. Where your agreement is executed or acknowledged in counterparts or by electronic means, each counterpart is deemed an original, and all counterparts together constitute one and the same instrument.

**Effective Date and Retention**

The terms and disclosures summarized in this document are effective as of the statement or reporting date shown and remain in effect until amended in accordance with your agreement and applicable law. We recommend that you retain this document, together with prior statements and your agreement, for the period during which related transactions or filings may be reviewed, and in any event for as long as you maintain the account. If you need additional copies, contact us using the information provided.

**Funds Transfers — ACH and Wire**

Funds transfers to and from your account, including automated clearing house (ACH) entries and wire transfers, are governed by your agreement, the operating rules of the applicable funds-transfer system, and applicable law, including Article 4A of the Uniform Commercial Code as adopted in the governing jurisdiction. When you originate or authorize a transfer, you authorize us to debit your account for the amount of the transfer and any applicable fee. We may rely on the account and routing numbers you provide, even if they identify a person different from the named recipient; we and other institutions in the transfer chain are not obligated to verify that the name and number match.

ACH entries are provisional until the receiving institution receives final settlement. If final settlement is not received, the receiving institution is entitled to a refund and the originator is deemed not to have paid you. We may reverse or adjust an entry to correct an error in accordance with the applicable rules. Cut-off times apply to the origination of transfers; transfers requested after the cut-off time may be processed on the next business day. International transfers may be subject to additional disclosures, exchange-rate adjustments, and the laws of other jurisdictions.

**Stop Payments**

You may request a stop payment on a check or certain preauthorized electronic transfers by providing us with sufficient information to identify the item and by following the procedures and timing requirements described in your agreement. A stop-payment order is effective for the period stated in your agreement and may be renewed. We are not liable for paying an item over a stop-payment order if the order was not received in time for us to act on it, did not accurately describe the item, or had expired. A fee may apply to each stop-payment request.

**Preauthorized Transfers**

If you have arranged for regular preauthorized electronic transfers to or from your account, you may stop payment of any such transfer by notifying us in the manner and within the time described in your agreement, generally at least three business days before the scheduled transfer date. If these regular payments may vary in amount, the party you are to pay is required to tell you, before each payment, when it will be made and how much it will be. We will comply with timely and properly completed stop-payment requests as required by applicable law.

**Joint Accounts and Survivorship**

If your account is a joint account, the rights of the owners upon the death of an owner are determined by the form of ownership designated for the account and by applicable law. Many joint accounts carry rights of survivorship, meaning that upon the death of an owner the funds belong to the surviving owner or owners; other forms of ownership may direct the funds to the estate of the deceased owner. You should review the ownership designation for your account and consult an advisor to ensure it reflects your intentions.

**Accounts for Minors and Custodial Accounts**

Accounts established for the benefit of a minor, including accounts under the Uniform Transfers to Minors Act or a comparable law, are subject to the requirements of that law and of your agreement. The custodian of such an account is responsible for managing the account for the benefit of the minor and for transferring the property to the minor at the age specified by law. We are not responsible for monitoring or enforcing the custodian's compliance with the custodian's fiduciary duties.

**Dormant Accounts and Reactivation**

If your account has no owner-initiated activity for the period specified by applicable law, we may classify it as dormant and may restrict certain activity to protect the account. We may attempt to contact you before classifying the account as dormant. To reactivate a dormant account, you may need to contact us and complete certain verification procedures. As described elsewhere, funds in a dormant account may ultimately be remitted to the state as unclaimed property if the account remains inactive and we are unable to locate you.

**Disputes Regarding the Account**

If we receive conflicting instructions or claims regarding your account, or if we are uncertain as to who is authorized to act on the account, we may, without liability, refuse to act, freeze the account, require satisfactory documentation or a court order, or interplead the funds into court. You agree to reimburse us for our reasonable expenses, including attorneys' fees, incurred in connection with any dispute regarding the account, to the extent permitted by applicable law. We are not obligated to determine the merits of any competing claim.

**Adverse Claims**

If a person who is not an owner of the account asserts a claim to the funds, or if we are served with legal process or otherwise have a reasonable basis to believe a dispute exists, we may place a hold on all or part of the funds, refuse to permit withdrawals, or take other action we deem appropriate, until the matter is resolved to our satisfaction or we receive instructions from a court. We are not required to recognize any adverse claim unless we are provided with adequate documentation and, where appropriate, indemnity or a bond satisfactory to us.

**Verification and Recoupment**



All deposits and other credits to your account are subject to verification and may be reversed, adjusted, or charged back if we determine that the credit was made in error, was not finally collected, or was procured by fraud. If a deposited item is returned unpaid, we may charge the amount of the item back against your account, together with any applicable fee, even if doing so creates an overdraft, and even if the item itself is not returned to us. We may charge back a returned item at any time permitted by applicable law.

**Substitute Checks and Image Exchange**

Checks you write or deposit may be converted to electronic images and processed through image-exchange systems, and the original paper check may not be returned to you. A substitute check is the legal equivalent of the original check and contains all the information on the original check. You may have rights under federal law if a substitute check is improperly charged against your account; those rights, and the procedure for asserting an expedited recredit claim, are described in the applicable disclosure.

**Limitations on Transactions**

Federal law and your agreement may impose limits on the number or type of certain transactions you may make on particular accounts during a statement cycle, and we may impose dollar limits on certain transactions for security or operational reasons. If you exceed an applicable limit, we may decline the transaction, assess a fee, or, after repeated occurrences, convert or close the account. We may change applicable limits in accordance with your agreement and applicable law, and we will notify you of changes as required.

**Best Execution and Order Handling (Investment Accounts)**

Where this document relates to an investment account, the manager seeks to obtain best execution of transactions, taking into account price, costs, speed, likelihood of execution and settlement, size, nature, and other relevant considerations. The manager may aggregate orders for multiple accounts where consistent with its duty to seek best execution and its allocation policy. Transaction costs are borne by the account as disclosed. The manager's order-handling and allocation policies are available on request.

**Conflicts of Interest (Investment Accounts)**

The manager and its affiliates may face conflicts of interest in providing services, including conflicts arising from compensation arrangements, relationships with issuers or other clients, and proprietary interests. The manager maintains policies designed to identify and manage such conflicts consistent with its duties to the account. A summary of the manager's conflicts-of-interest policy and, where applicable, its proxy-voting policy and its policy on the receipt of research, is available on request.

**Statement Delivery and Address Changes**

We will send statements and notices to the most recent address you have provided, whether postal or electronic, according to your delivery election. You are responsible for notifying us promptly of any change of address or email; you may do so through your online account, by telephone, or in writing. If statements or notices are returned to us as undeliverable, we may discontinue sending them until you provide a valid address, but the information they contain remains effective as of the date sent. Statements not received should be requested promptly so that you can review your account activity within the applicable error-reporting periods.

**Provisional Credit and Reversal**

In resolving a claim of error involving an electronic transfer, if we are required to provide a provisional credit while we investigate, that credit is provisional and may be reversed if our investigation determines that no error occurred or that the error was different from what you described. If we reverse a provisional credit, we will notify you of the date and amount of the reversal and will honor, without charge, items that would have paid had the provisional credit not been reversed, for a limited period as required by applicable law.

**Holds on Deposited Funds**

In addition to the general funds-availability schedule, we may place a hold on funds you deposit by check, and a longer hold may apply if the check is for a large amount, is a redeposited check, is drawn on an account with repeated overdrafts, is being deposited to a new account, or where we have reasonable cause to doubt collectibility. When we place a hold of this kind, we will notify you and tell you when the funds will be available. Funds you deposit may be delayed for a longer period under these circumstances even though the funds have not been finally collected.

**Remote Deposit and Mobile Services**

If you use a remote deposit, mobile deposit, or similar service to deposit checks electronically by transmitting an image, you agree to retain the original item for the period specified in your agreement and not to deposit the original or a copy again, and to destroy it after the retention period. We may impose limits on the amount and number of items deposited through these services, and we may refuse any image that does not meet our quality or eligibility standards. Funds from remotely deposited items are subject to the funds-availability and hold provisions of your agreement.

**Online and Mobile Access; Security Credentials**

Access to your account through online and mobile channels requires security credentials, which may include passwords, passcodes, security questions, one-time codes, and, where offered, biometric identifiers stored on your device. You are responsible for keeping your credentials confidential and for all activity conducted using your credentials. Notify us immediately if you believe your credentials have been compromised. We may suspend access, require re-verification, or impose additional authentication where we reasonably believe it is necessary to protect your account.

**Account Alerts**

We may make available account alerts that notify you of events such as low balances, large transactions, or payments due. Alerts are provided for convenience, may be delayed or fail to be delivered for reasons outside our control, and should not be relied upon as the sole means of monitoring your account. You are responsible for reviewing your statements and account activity regardless of whether you receive alerts. Standard message and data rates may apply to alerts delivered by text message.

**Revoking Recurring Payment Authorizations**

If you have authorized a third party to initiate recurring charges or debits to your account, you may revoke that authorization by notifying the third party and, as a backstop, by notifying us in the manner and within the time described in your agreement. To stop a recurring electronic debit, we generally must receive your request at least three business days before the scheduled date. We may require you to confirm your request in writing. Revoking an authorization with us does not relieve you of any obligation you have to the third party under your agreement with that party.

**Returned Mail and Inactive Contact**

If mail we send you is returned as undeliverable, or if we are otherwise unable to contact you, we may suspend the delivery of statements and notices and may take additional steps to attempt to locate you. Prolonged inability to contact you, combined with an absence of account activity, may result in your account being classified as dormant and, ultimately, in the remittance of funds to the appropriate state as unclaimed property, as described elsewhere in these disclosures.

**Credit Inquiries and Reporting Authorization**

By applying for or maintaining an account or credit with us, you authorize us to obtain credit reports and other information about you from consumer reporting agencies and other sources in connection with evaluating your application, administering your account, and for other permissible purposes. We may report information about your account and your payment history to consumer reporting agencies. Such information may be reflected in your credit report and may affect your credit standing and your ability to obtain credit in the future.

**Copies, Research, and Special Requests**

Upon your request, and subject to any applicable fee disclosed in our fee schedule, we can provide copies of statements, checks, and certain other records for the periods we are required to retain them, and we can perform research on your account. Requests that require substantial time or that relate to older periods may take longer to fulfill and may be subject to higher fees. We will tell you the applicable fee before performing the requested service where required by law.

**Tax Information Reporting**

We report information about your account to the Internal Revenue Service and to you as required by law, including interest, dividends, and certain other income and proceeds, on the applicable information returns. You are responsible for providing a correct taxpayer identification number and the certifications we request; failure to do so may result in backup withholding and in our inability to report correctly. The tax treatment of amounts credited to or paid from your account is your responsibility; we do not provide tax advice.

**Limitation of Our Liability for Service Interruptions**

We will not be liable for failing to complete a transaction or to provide a service if, through no fault of ours, you do not have sufficient available funds; if a system, network, or facility was not working properly and you knew about the breakdown when you started the transaction; if circumstances beyond our control prevented the transaction despite reasonable precautions; or as otherwise provided in your agreement or permitted by applicable law. This limitation is in addition to, and not in place of, the other limitations of liability described in these disclosures.

**Entirety of Disclosures; Order of Precedence**

These disclosures summarize selected terms applicable to your account or relationship and are provided with your statement for your convenience. They do not replace your complete agreement, fee schedule, rate sheet, and other governing documents, which contain the full terms and control in the event of any conflict with these summaries. If you would like a complete copy of the governing documents, contact us using the information shown on this statement, and we will provide one.